

Notice of Overdue FOIL Responses and Request to Preserve the Public Record

Date: September 13, 2026

To: Mayor Marc Citrin; Deputy Mayor Michele Lindsay; Trustees Joshua Scherer, Matthew Tinari, and Jedediah Turner; Police Chief Allen Faust; Village Clerk; Village Attorney James Kasschau

Subject: Proposed accessory structure law and overdue FOIL responses

Copy: TPFYI; Meg Vaught

Dear Mayor Citrin, Trustees, Chief Faust, Village Clerk, and Village Attorney:

Before the Board closes the public hearing or takes any action on the proposed accessory-structure law, the Village should complete its overdue responses to the two FOIL requests that Robin and I submitted on August 4, 2026, and make the responsive public records available in time for residents and the Board to review them.

The response dates have passed

Our first request sought Village administrative records concerning the origin, drafting, purpose, factual basis, communications, complaints, enforcement history, and anticipated effect of the proposed law. John Ledwith forwarded that request to the Village Clerk on August 4.

The Clerk's acknowledgment letter, dated August 5 and emailed August 6, stated that the request was expected to be granted or denied, in whole or in part, within 20 business days of the letter. That period ended on or about September 2. We have received neither the records nor a denial, and we have not received a written explanation establishing a later date certain.

Our second request was sent directly to Chief Allen Faust on August 4, with the Records Access Officer copied. It sought Police Department complaints, calls for service, incident and enforcement records, communications, and factual reports concerning the McFadden boathouse, private-property photography and filming, and the proposed law. As of September 13, that request has never been acknowledged by the Chief, the Police Department, the Village Clerk, or the Board of Trustees. We have received no records, written denial, or written extension from any of them in response to that request.

New York FOIL generally requires an agency, within five business days, to provide the records, deny the request in writing, or acknowledge it and state a reasonable approximate response date. When more than 20 business days are needed, the agency should give a written explanation and a specific reasonable date. We are preserving this correspondence and the complete response history.

The missing records are central to the proposed law

These requests do not concern a side issue. They seek the records that may show what public problem the Village is attempting to solve, whether any complaint identified noise, traffic, parking, safety, lodging, or other measurable harm, how the proposal changed from a rental measure into a much broader regulation, who participated in that process, and what enforcement history exists.

The Mayor's August newsletter described the proposal as a law against renting accessory structures and using them as public event spaces. The August 19 draft, however, reaches well beyond overnight rentals. Its operative language addresses guests, remuneration in many forms, independent use and occupancy, adjoining-lot and common-ownership requirements, boathouses, docks, and every use not specifically permitted.

The single Hickey Freeman fashion shoot that prompted this controversy occurred on our boathouse dock only. There was no lodging, overnight occupancy, rental of residential space, or surrender of possession. Because the August 19 draft expressly includes docks, its language may affect waterfront owners on all three Village lakes, whether or not they own a boathouse.

Public comment must address the law actually proposed

We understand that residents may have submitted letters opposing the rental of boathouses. They are entitled to that view. But opposition to Airbnb-style or overnight boathouse rentals does not establish support for the much broader operative language in the August 19 draft. Existing certificate-of-occupancy and building-code requirements already prevent boathouses without residential occupancy authorization from being used as overnight accommodations.

Before the Board relies on the number of letters received as evidence of community support, the record should show whether the writers were given the actual draft and understood its broader reach. The requested communications are relevant to determining how the proposal was presented, whether comments were solicited or coordinated, and whether claimed public support responds to the actual law rather than to a narrower description of it. We are not asserting coordination as a proven fact; that is one reason the records matter.

The Mayor has stated publicly that this proposal arose after a neighbor saw the McFadden boathouse listed with a location broker for photoshoots and brought the listing to his attention. The neighbor did not report a disturbance of the peace or an observed problem involving noise, traffic, parking, safety, lodging, or other external impact. My understanding is that the neighbor also has a dock located a substantial distance from our boathouse and out of both docks line-of-site. The stated origin of the proposal was therefore the existence of the listing, not a documented disturbance caused by the activity.

I have heard an unverified report that an individual may be organizing or promoting a letter-writing effort in support of the proposed law. I am not asserting that such a campaign has occurred. The requested communications may help establish whether the letters were independently submitted, whether they were solicited or coordinated, and whether the writers were provided with the actual proposed language rather than a narrower description focused on overnight boathouse rentals.

If so, the Board should distinguish that private history from independent evidence of a Village-wide public problem. Residents remain free to organize and comment, but neither a private dispute nor the number of letters generated through a campaign can replace the Board's obligation to identify a legitimate public-welfare basis for the actual law, consider the relevant facts, and apply neutral standards.

A collection of comments opposing unlawful overnight rentals cannot supply the factual basis for restrictions on owner-supervised photography, docks, guests, gifts, services, separately assessed parcels, and other activity involving no lodging or transfer of possession.

Requested action

1. Produce all responsive, nonexempt records promptly, beginning with the most recent records and continuing on a rolling basis.
2. For any withheld or redacted material, identify the record or category and the statutory basis for withholding it.
3. Provide a written status for each FOIL request, including a specific date by which each request will be granted or denied in whole or in part.

4. Chief Faust should confirm whether he received the August 4 Police Department request, whether he forwarded it to the appropriate records officer, and who is presently responsible for issuing the required response.
5. Post the responsive public records with the proposed law so residents have a meaningful opportunity to review them.
6. Keep the public hearing open, and do not schedule or take a vote on the proposal, until the records have been produced and the public has had reasonable time to review and comment on them.
7. Preserve all potentially responsive Village and Police Department records, including emails, text messages, attachments, notes, complaints, call records, and communications maintained on personal devices or accounts when used for Village business.
8. Place this letter and its enclosures in the legislative and public-hearing record.

This request is not an effort to delay Village business indefinitely. It is a request that the Board avoid making a final legislative decision before the factual record requested weeks ago is disclosed. If the Village proceeds without those records, the official record should reflect that the McFaddens timely requested information directly bearing on the law's origin and stated justification, that the response dates passed, and that the information was not available when the Board continued its consideration.

For completeness and so that the Village has notice of the steps we are taking to obtain guidance, we are also enclosing our letter to the New York Coalition for Open Government concerning the response history. The Coalition is an independent transparency organization; the enclosed letter is provided as part of the chronology and record of our efforts to obtain the requested public information.

Please confirm receipt, identify the FOIL appeal officer and applicable appeal procedure, and provide the current status and date certain for each request. Nothing in this letter waives any right or remedy available to us.

Respectfully,

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Enclosures

1. August 4, 2026 Village Administrative FOIL Request
2. August 4, 2026 Police Records FOIL Request
3. August 5, 2026 Village Clerk acknowledgment letter
4. September 13, 2026 letter to the New York Coalition for Open Government
5. August 2026 Mayor's Message newsletter
6. NYCOM Chapter 8—Local-Law Procedure